

1.

| CASE #      | CASE NAME                                                                    | HEARING NAME                               |
|-------------|------------------------------------------------------------------------------|--------------------------------------------|
| CVPS2503668 | VISTA MONTANA, A CALIFORNIA NON-PROFIT MUTUAL BENEFIT CORPORATION. VS WILDER | MOTION TO DISMISS AND FOR SUMMARY JUDGMENT |

**Tentative Ruling:** No tentative ruling. Hearing is continued to December 1, 2026.

CCP §437c(a)(2) provides that “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (CCP §437c(a)(2).) “If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of the address is within the State of California ....”

Here, the notice period required was 86 days (81 days + 5 days for mailing). According to the proof of service filed on June 12, 2026, the motion was served *by mail* on 6/12/26. The hearing date is September 3, 2026. Thus, service of notice of the motion was required to be effected by June 9, 2026 for the September 3, 2026 hearing date. However, it was served three days late.

Notably, “[t]he court may *not* shorten the 81-day notice period without the parties’ consent. CCP § 437c(a) gives the court power to shorten time on *other* summary judgment time requirements, but *not* on the 81-day notice of hearing.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 10:80.5 citing *McMahon v. Sup. Ct. (Amer. Equity Ins. Co.)* (2003) 106 Cal.App.4<sup>th</sup> 112, 116.) “Where the moving party notices the hearing in less than the required time, *notice must begin anew*. The court *cannot* cure this defect by continuing the hearing for the missing number of days.” (*Id.* § 10.80.6 citing *Robinson v. Woods* (2008) 168 Cal.App.4<sup>th</sup> 1258, 1268.)

2.

| CASE #      | CASE NAME                                      | HEARING NAME                                                                                    |
|-------------|------------------------------------------------|-------------------------------------------------------------------------------------------------|
| CVPS2508388 | VIEIRA COSTA VS SUNDANCE II OWNERS ASSOCIATION | MOTION TO SET ASIDE ON CROSS-COMPLAINT OF SUNDANCE II OWNERS ASSOCIATION BY F.C. LANDSCAPE, INC |

**Tentative Ruling:** C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons but defendant did not get actual notice of the action in time to defend. The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

Discretionary relief pursuant to CCP 473(b) is available “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P.